

Smt. Khursheeda Begum v. State of U.P. — Clause 6.14 instalment liberty for reconnection

High Court of Judicature at Allahabad · Division Bench · 2 November 2021 · Writ-C No. 25947 of 2021 · Writ-C No. 25947 of 2021 · **Liberty to represent to Executive Engineer under clause 6.14 for instalments and reconnection.**

HEADNOTE

A consumer whose connection was temporarily disconnected for non-payment, and who does not challenge the dues but seeks restoration by paying in instalments, is to use clause 6.14 of the U.P. Electricity Supply Code, 2005. Sub-clause (2) vests the instalment power in officers not below Executive Engineer. The writ was disposed of with liberty to represent to the Executive Engineer, PVVNL, Hapur, for instalments and reconnection, to be decided by a speaking order preferably within three weeks.

FACTUAL SUMMARY

Smt. Khursheeda Begum's electricity connection was temporarily disconnected for non-deposit of dues. She faced recovery of Rs. 3,43,400 towards electricity charges, which she did not challenge in the writ. She sought a direction to the electricity department to restore the connection by allowing her to deposit the arrears in instalments. The writ was against the State of U.P. and officers of Paschimanchal Vidyut Vitran Nigam Limited, Hapur. Counsel for the distribution licensee appeared and referred the Court to the instalment machinery in the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility and reconnection after temporary disconnection

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides a facility of payment of dues in instalments to consumers in financial distress; sub-clause (2) confers that power on officers not below the rank of Executive Engineer. A writ seeking restoration of a temporarily disconnected connection by instalment payment of unchallenged arrears is disposed of by liberty to represent to the Executive Engineer for fixing instalments and reconnection, such representation to be addressed by a speaking order expeditiously, preferably within three weeks. ¶ 1

PRINCIPLE TAGS

instalment-payment-clause-6.14 Treated as the Supply Code route for paying unchallenged electricity arrears in instalments so that a temporarily disconnected connection may be restored. ¶ 1

instalment-facility-clause-6.14-for-financial-distress Relied on as the provision conferring an instalment facility on consumers in financial distress, exercisable by officers not below Executive Engineer under sub-clause (2). ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OR QUANTUM OF THE RS. 3,43,400 ELECTRICITY DUES

The recovery was expressly not challenged in the writ. ¶ 1

NOT DECIDED — WHETHER INSTALMENTS AND RECONNECTION SHOULD IN FACT BE GRANTED

Left to the Executive Engineer on representation, to be decided by speaking order. ¶ 1

